

****24.05.2024****

****May 25, 2024 – Activity of ANSPDCP****

On May 25, 2024, six years will have passed since the application of Regulation (EU) 2016/679 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (GDPR).

On this occasion, we bring to the public's attention relevant information from our institution's activity in the first 4 months of 2024.

Thus, during the period from January to April of the current year, our institution received 1,831 complaints, notifications, and reports regarding security incidents, based on which 156 investigations were opened.

As a result, 20 fines were imposed, totaling 204,444 lei (equivalent to 41,100 euros), through the investigations carried out during this period.

At the same time, 37 warnings were issued, and 34 corrective measures were ordered.

Regarding the complaint resolution activity, the National Supervisory Authority received 1,669 complaints in the first four months of the current year. For the resolution of the admissible complaints, 50 investigations were initiated.

Additionally, during the same period, data operators submitted 65 notifications regarding data security breaches, and reports concerning possible non-compliance with GDPR provisions amounted to 97. Based on these 162 reports and notifications regarding security incidents, 106 investigations were conducted.

The complaints, reports, and notifications regarding data security breaches received by the National Supervisory Authority during this period mainly concerned the following aspects:

1. Disclosure of personal data to third parties, including online and on social media;
2. Use of video surveillance by individuals and legal entities;
3. Non-compliance with the rights of data subjects, especially the right of access, the right to object, and the right to erasure of data (Articles 15, 21, and 17 of GDPR);
4. Receipt of unsolicited commercial messages via electronic communications;
5. Cyber attacks;
6. Use of facial recognition monitoring systems in schools;
7. Violation of data processing principles, especially those of legality, fairness, and transparency, data minimization, integrity and confidentiality, and accountability, regulated in Article 5 of GDPR.

At the same time, in the first 4 months of this year, there has been a continued high number of requests for opinions regarding various aspects related to the interpretation and application of GDPR and other relevant regulations. Thus, the National Supervisory Authority received a total of 312 requests for opinions from operators and their representatives (from both public and private sectors), from other entities, as well as from individuals.

Additionally, during the same period, the National Supervisory Authority issued opinions on 46 draft normative acts submitted by public institutions, which involved analyzing various and complex aspects regarding the proper application of data protection rules.

Regarding the representation activity in court, in the first four months of 2024, a total of 20 new requests for summons were registered, of which 8 requests concerned the contestation of minutes of findings/sanctions drawn up by representatives of the National Supervisory Authority.

On the other hand, from January to April 2024, communication activities aimed at informing the general public about the rules for processing personal data continued.

Thus, on the occasion of celebrating the European Data Protection Day, on January 26, 2024, a Conference was organized on the theme "The Role and Efficiency of the Data Protection Officer's Activity."

On this occasion, an informational brochure dedicated to this annual event was posted on the institution's website in Romanian and English.

On this occasion, our institution proposed and agreed with the Ministry of Internal Affairs and the Ministry of Foreign Affairs to organize events aimed at increasing awareness regarding the specific

application of data protection rules by police personnel, as well as by diplomatic and consular staff, including regarding the updates brought by Regulations (EU) 2018/1860, 2018/1861, 2018/1862, applicable in the Schengen area.

Additionally, at the proposal of our institution, an informational clip dedicated to promoting the General Data Protection Regulation was broadcasted on the national television channel TVR and in the public transport means of the Bucharest Transport Company.

During the same period (January – April 2024), the National Supervisory Authority continued its activity of informing the general public by publishing 16 press releases and information from the special section dedicated to Regulation (EU) 2016/679.

Furthermore, our institution actively participated in several institutional meetings relevant to the field of data protection.

Regarding the external cooperation activity of the National Supervisory Authority, we specify that in the first four months of 2024, our institution analyzed 10 requests for approval of Binding Corporate Rules (BCRs) submitted by multinational companies. Additionally, the National Supervisory Authority acted, at the request of some companies for BCR approval, as a co-reviewer, as well as a member of the drafting team of the European Data Protection Committee's opinion regarding a set of corporate rules.

****Legal and Communication Department****

****ANSPDCP****